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IN SENATE

May 14, 2025

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the vehicle and traffic law, in relation to school bus stop-arm cameras

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 and paragraph d of subdivision 2 of section
2 236 of the vehicle and traffic law, subdivision 1 as amended by section
3 2 of part N of chapter 58 of the laws of 2025, paragraph d of subdivi-
4 sion 2 as amended by chapter 342 of the laws of 1981, are amended to
5 read as follows:
6 1. Creation. In any city as hereinbefore or hereafter authorized such
7 tribunal when created shall be known as the parking violations bureau
8 and shall have jurisdiction of traffic infractions which constitute a
9 parking violation and, any county, town, or village or hereafter author-
10 ized such tribunal when created shall be known as a traffic-camera
11 violations bureau, where authorized: (a) to adjudicate the liability of
12 owners for violations of subdivision (d) of section eleven hundred elev-
13 en of this chapter imposed pursuant to a local law or ordinance imposing
14 monetary liability on the owner of a vehicle for failure of an operator
15 thereof to comply with traffic-control indications through the installa-
16 tion and operation of traffic-control signal photo violation-monitoring
17 systems, in accordance with article twenty-four of this chapter, or (b)
18 to adjudicate the liability of owners for violations of subdivision (b),

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or (c) to adjudicate the liability of owners for violations of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter, or (d) to adjudicate the liability of owners for violations of toll collection regulations imposed by certain public authorities pursuant to the law authorizing such public authorities to impose monetary liability on the owner of a vehicle for failure of an operator thereof to comply with toll collection regulations of such public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty, or (e) to adjudicate the liability of owners for violations of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter, or (f) to adjudicate the liability of owners for violations of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter, or (g) to adjudicate the liability of owners for violations of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or (h) to adjudicate the liability of owners for violations of bus operation-related traffic regulations as defined by article twenty-four of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus operation-related traffic regulations through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter. Such tribunal, except in a city with a population of one million or more, shall also have jurisdiction of abandoned vehicle violations. For the purposes of this article, a parking

1 violation is the violation of any law, rule or regulation providing for
2 or regulating the parking, stopping or standing of a vehicle. In addi-
3 tion for purposes of this article, "commissioner" shall mean and include
4 the commissioner of traffic of the city or an official possessing
5 authority as such a commissioner.

6 d. The commissioner shall appoint hearing examiners who shall preside
7 at hearings for the adjudication of charges of parking violations and
8 other violations authorized by law. Hearing examiners shall be
9 appointed and shall serve for such number of sessions as may be deter-
10 mined by the commissioner and shall receive therefor, such remuneration
11 as may be fixed. Such hearing examiners shall not be considered employ-
12 ees of the county, city, town, or village in which the administrative
13 tribunal has been established. Every hearing examiner shall have been
14 admitted to the practice of law in this state for a period of at least
15 five years, except in cities having a population of one million or more
16 persons where they shall have been admitted to such practice for a peri-
17 od of at least three years. Hearing examiners shall be appointed from a
18 list of eligible candidates who have satisfied the standards established
19 by a duly constituted committee of the bar association of the county in
20 which the city is located or, the association of the bar of that city.

21 § 2. Subparagraph (i) of paragraph a of subdivision 5-a of section 401
22 of the vehicle and traffic law, as amended by section 7 of part N of
23 chapter 58 of the laws of 2025, is amended to read as follows:

24 (i) If at the time of application for a registration or renewal there-
25 of there is a certification from a court, parking violations bureau,
26 traffic and parking violations agency or administrative tribunal of
27 appropriate jurisdiction that the registrant or their representative
28 failed to appear on the return date or any subsequent adjourned date or
29 failed to comply with the rules and regulations of an administrative
30 tribunal following entry of a final decision in response to either a
31 total of three or more summonses or other process in the aggregate,
32 issued within an eighteen month period, or summonses or other process in
33 the aggregate resulting in total monetary liability of two hundred fifty
34 dollars or greater, charging either that: (i) such motor vehicle was
35 parked, stopped or standing, or that such motor vehicle was operated for
36 hire by the registrant or their agent without being licensed as a motor
37 vehicle for hire by the appropriate local authority, in violation of any
38 of the provisions of this chapter or of any law, ordinance, rule or
39 regulation made by a local authority; or (ii) the registrant was liable
40 for a violation of subdivision (d) of section eleven hundred eleven of
41 this chapter imposed pursuant to a local law or ordinance imposing mone-
42 tary liability on the owner of a vehicle for failure of an operator
43 thereof to comply with traffic-control indications through the installa-
44 tion and operation of traffic-control signal photo violation-monitoring
45 systems, in accordance with article twenty-four of this chapter; or
46 (iii) the registrant was liable for a violation of subdivision (b), (c),
47 (d), (f) or (g) of section eleven hundred eighty of this chapter imposed
48 pursuant to a demonstration program imposing monetary liability on the
49 owner of a vehicle for failure of an operator thereof to comply with
50 such posted maximum speed limits through the installation and operation
51 of photo speed violation monitoring systems, in accordance with article
52 thirty of this chapter; or (iv) the registrant was liable for a
53 violation of bus lane restrictions as defined by article twenty-four of
54 this chapter imposed pursuant to a bus rapid transit program imposing
55 monetary liability on the owner of a vehicle for failure of an operator
56 thereof to comply with such bus lane restrictions through the installa-

tion and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or (v) the registrant was liable for a violation of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or (vi) the registrant was liable for a violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or (vii) the registrant was liable for a violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or (viii) the registrant was liable for a violation of bus operation-related traffic regulations as defined by article twenty-four of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus operation-related traffic regulations through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter, the commissioner or their agent shall deny the registration or renewal application until the applicant provides proof from the court, traffic and parking violations agency or administrative tribunal wherein the charges are pending that an appearance or answer has been made or in the case of an administrative tribunal that such applicant has complied with the rules and regulations of said tribunal following entry of a final decision. Where an application is denied pursuant to this section, the commissioner may, in their discretion, deny a registration or renewal application to any other person for the same vehicle and may deny a registration or renewal application for any other motor vehicle registered in the name of the applicant where the commissioner has determined that such registrant's intent has been to evade the purposes of this subdivision and where the commissioner has reasonable grounds to believe that such registration or renewal will have the effect of defeating the purposes of this subdivision. Such denial shall only remain in effect as long as the summonses remain unanswered, or in the case of an administrative tribunal, the registrant fails to comply with the rules and regulations following entry of a final decision.

§ 3. Subdivision (a) of section 1174 of the vehicle and traffic law, as amended by chapter 597 of the laws of 1990, is amended to read as follows:

(a) The driver of a vehicle upon a public highway, street or private road upon meeting or overtaking from either direction any school bus.

1 for which there shall be a rebuttable presumption that such school bus
2 was marked and equipped as provided in subdivision twenty of section
3 three hundred seventy-five of this chapter which has stopped on the
4 public highway, street or private road for the purpose of receiving or
5 discharging any passengers, or which has stopped because a school bus in
6 front of it has stopped to receive or discharge any passengers, shall
7 stop the vehicle before reaching such school bus when there is in opera-
8 tion on said school bus a red visual signal as specified in subdivision
9 twenty of section three hundred seventy-five of this chapter and said
10 driver shall not proceed until such school bus resumes motion, or until
11 signaled by the driver or a police officer to proceed. For the purposes
12 of this section, and in addition to the provisions of section one
13 hundred thirty-four of this chapter, the term "public highway" shall
14 mean any area used for the parking of motor vehicles or used as a drive-
15 way located on the grounds of a school or of a board of cooperative
16 educational services facility or any area used as a means of access to
17 and egress from such school or facility.

18 § 4. Paragraphs 1 and 2 of subdivision (a) of section 1174-a of the
19 vehicle and traffic law, as amended by section 1 of part AA of chapter
20 56 of the laws of 2024, are amended to read as follows:

21 1. Notwithstanding any other provision of law, a county, city, town or
22 village located within a school district ("district") is hereby author-
23 ized and empowered to adopt and amend a local law or ordinance applica-
24 ble to all roadways within its boundaries establishing a demonstration
25 program imposing monetary liability on the owner of a vehicle for fail-
26 ure of an operator thereof to comply with subdivision (a) of section
27 eleven hundred seventy-four of this article when meeting a school bus
28 marked and equipped as provided in subdivisions twenty and twenty-one-c
29 of section three hundred seventy-five of this chapter and operated in
30 such county, city, town or village, in accordance with the provisions of
31 this section. Such demonstration program shall empower such county,
32 city, town or village to install and operate school bus photo violation
33 monitoring systems which may be stationary or mobile, and which may be
34 installed, pursuant to an agreement with a school district within such
35 county, city, town or village, on school buses owned and operated by
36 such school district or privately owned and operated for compensation
37 under contract with such district. Provided, however, that (a) no
38 stationary school bus photo violation monitoring system shall be
39 installed or operated by a county, city, town or village except on road-
40 ways under the jurisdiction of such county, city, town or village, and
41 (b) no mobile school bus photo violation monitoring system shall be
42 installed or operated on any such school buses unless such county, city,
43 town or village and such district enter into an agreement for such
44 installation and operation.

45 2. Any image or images captured by school bus photo violation monitor-
46 ing systems shall be inadmissible in any disciplinary proceeding
47 convened by any school district or any school bus contractor thereof,
48 and any proceeding initiated by the department involving licensure priv-
49 ileges of school bus operators. ~~[Any]~~ Notwithstanding any other
50 provision of this section, any school bus photo violation monitoring
51 device mounted on a school bus shall be directed outwardly from such
52 school bus to capture images of vehicles operated in violation of subdi-
53 vision (a) of section eleven hundred seventy-four of this article, and
54 images produced by such device shall not be used for any other purpose,
55 including federal immigration enforcement assistance, except as provided

1 by section eleven hundred eleven-c of this title, for statistical
2 purposes, educational purposes, or other governmental purposes.

3 § 5. Subparagraph (i) of paragraph 3 of subdivision (a) of section
4 1174-a of the vehicle and traffic law, as added by chapter 145 of the
5 laws of 2019, is amended to read as follows:

6 (i) [Any] Until final disposition of a notice of liability issued
7 pursuant to this section, any participating school district shall be
8 prohibited from accessing any photographs, microphotographs, videotapes,
9 other recorded images or data from school bus photo violation monitoring
10 systems allegedly evidencing a motor vehicle operated in violation of
11 subdivision (a) of section eleven hundred seventy-four of this article,
12 but shall provide, pursuant to an agreement with a county, city, town or
13 village as provided in this section, for the proper handling and custody
14 of such photographs, microphotographs, videotapes, other recorded images
15 and data produced by such systems, and for the forwarding of such photo-
16 graphs, microphotographs, videotapes, other recorded images and data to
17 the applicable county, city, town or village for the purpose of deter-
18 mining whether a motor vehicle was operated in violation of subdivision
19 (a) of section eleven hundred seventy-four of this ~~[title]~~ article and
20 imposing monetary liability on the owner of such motor vehicle therefor.

21 § 6. Paragraph 4 of subdivision (a) of section 1174-a of the vehicle
22 and traffic law, as added by chapter 145 of the laws of 2019, subpara-
23 graph (iii) as amended by section 1 of part AA of chapter 56 of the laws
24 of 2024, is amended to read as follows:

25 4. A county, city, town or village establishing a demonstration
26 program pursuant to this section shall adopt and enforce measures to
27 protect the privacy of drivers, passengers, pedestrians and cyclists
28 whose identity and identifying information may be captured by a school
29 bus photo violation monitoring device. Such measures shall include:

30 (i) utilization of necessary technologies to ensure, to the extent
31 practicable, that photographs produced by such school bus photo
32 violation monitoring systems shall not include images that identify the
33 driver, the passengers, the contents of the vehicle, pedestrians and
34 cyclists. Provided, however, that no notice of liability issued pursuant
35 to this section shall be dismissed solely because a photograph or photo-
36 graphs allow for the identification of the contents of a vehicle,
37 provided that such county, city, town or village has made a reasonable
38 effort to comply with the provisions of this paragraph;

39 (ii) a prohibition on the use or dissemination of vehicles' license
40 plate information and other information and images captured by school
41 bus photo violation monitoring systems except: (A) as required to estab-
42 lish liability under this section or collect payment of penalties; (B)
43 as required by court order; or (C) as otherwise required permitted by
44 law;

45 (iii) the installation of signage in conformance with standards estab-
46 lished in the MUTCD at each roadway entrance of the jurisdictional boun-
47 daries of such county, city, town or village giving notice that school
48 bus photo violation monitoring systems are used to enforce restrictions
49 on vehicles violating subdivision (a) of section eleven hundred seven-
50 ty-four of this article. For the purposes of this paragraph, the term
51 "roadway" shall not include state expressway routes or state interstate
52 routes but shall include controlled-access highway exit ramps that enter
53 the jurisdictional boundaries of a county, city, town or village; and

54 (iv) oversight procedures to ensure compliance with the aforementioned
55 privacy protection measures.

§ 7. Subdivision (c) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

(c) For purposes of this section, the following terms shall have the following meanings: "county" shall have the meaning provided in section three of the county law, except that such term shall not include any county wholly contained within a city; "local tribunal" shall mean a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a county, city, town, or village has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such county, city, town, or village may, by local law, authorize such adjudication by such tribunal and except that adjudication of liability imposed upon owners by this section for violations occurring in the city of New York shall be by the New York city parking violations bureau; "manual on uniform traffic control devices" or "MUTCD" shall mean the manual and specifications for a uniform system of traffic control devices maintained by the commissioner of transportation pursuant to section sixteen hundred eighty of this chapter; "owner" shall have the meaning provided in article two-B of this chapter; "school district" shall have the meaning as "educational agency" as provided in section two-d of the education law; and "school bus photo violation monitoring system" shall mean a device that is capable of operating independently of an enforcement officer which is installed to work in conjunction with a school bus stop-arm and which automatically produces two or more photographs, two or more microphotographs, a videotape or other recorded images of a vehicle at the time it is used or operated in violation of subdivision (a) of section eleven hundred seventy-four of this article.

§ 8. Paragraph 2 of subdivision (g) of section 1174-a of the vehicle and traffic law, as amended by section 4 of part AA of chapter 56 of the laws of 2024, is amended and a new paragraph 4 is added to read as follows:

2. A notice of liability shall contain the name and address of the person alleged to be liable as an owner for a violation of subdivision (a) of section eleven hundred seventy-four of this article pursuant to this section[7]; the registration number of the vehicle involved in such violation[7]; the location where such violation took place, the date and time of such violation[7]; the identification number of the school bus photo violation monitoring system which recorded the violation or other document locator number[7]; and the registration number of the school bus on which the school bus photo violation monitoring system which recorded the violation was installed; instructions for payment, noting that payment is deemed an admission of liability; information advising the person charged of the manner and the time in which they may contest the liability alleged in the notice within thirty-seven days of receipt, which may include an in-person hearing in accordance with the provisions of subdivision (h) of this section, and at the discretion of the local tribunal, may also include contestation by online video conferencing or by mail through submission of a written explanation.

4. For the purposes of this section, the notice of liability containing the information set forth in paragraph two of this subdivision shall be deemed sufficient to initiate proceedings in accordance with the

procedures set forth in this subdivision and subdivision (h) of this section.

§ 9. Subdivision (h) of section 1174-a of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

(h) Adjudication of the liability imposed upon owners by this section shall be by ~~[a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a city has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such city may, by local law, authorize such adjudication by such tribunal]~~ a local tribunal pursuant to this section. For any local tribunal pursuant to this section having jurisdiction over traffic infractions where the violation occurred, a notice of liability validly imposed in accordance with subdivision (g) of this section shall be valid for purposes of such tribunal adjudicating such liability, and such tribunal shall adjudicate such liability in a manner not inconsistent with the procedures for a hearing officer pursuant to paragraphs (a), (b) and (c) of subdivision two of sections two hundred forty and two hundred forty-one of this chapter. Provided, however, subsequent judicial review may be sought pursuant to article seventy-eight of the civil practice law and rules. Notwithstanding any other provision of law, such local tribunal may adjudicate such liability remotely by online video conferencing or by mail through submission of a written explanation. Within fourteen business days after the local tribunal has rendered a decision, a notice of decision shall be prepared and sent by first class mail to the owner by the local tribunal or its designee. A manual or automatic record of mailing prepared in the ordinary course of business shall be prima facie evidence of the facts contained therein. If the owner is deemed liable, they shall be notified that nonpayment of the penalty imposed in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

§ 10. Paragraphs 1, 2 and 2-b of subdivision (a) of section 1180-e of the vehicle and traffic law, paragraphs 1 and 2 as amended by section 1 and paragraph 2-b as added by section 2 of part Q of chapter 58 of the laws of 2025, are amended to read as follows:

1. Notwithstanding any other provision of law, the commissioner of transportation is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits in a highway construction or maintenance work area located on a controlled-access highway: (i) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (ii) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. Such demonstration program shall empower the commissioner to install photo speed violation monitoring systems within no more than forty highway construction or maintenance work areas located on controlled-access highways and to operate such systems within such work areas; (iii) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in para-

graph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (iv) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. The commissioner, in consultation with the superintendent of the division of state police, shall determine the location of the highway construction or maintenance work areas located on a controlled-access highway in which to install and operate photo speed violation monitoring systems. In selecting a highway construction or maintenance work area in which to install and operate a photo speed violation monitoring system, the commissioner shall consider criteria including, but not limited to, the speed data, crash history, and roadway geometry applicable to such highway construction or maintenance work area. A photo speed violation monitoring system shall not be installed or operated on a controlled-access highway exit ramp. The commissioner and a local tribunal may enter into a memorandum of understanding for the purposes of facilitating adjudication of liability imposed upon owners by this section. Such memorandum may address provisions for cost sharing and prosecutorial responsibilities.

2. Notwithstanding any other provision of law, after holding a public hearing in accordance with the public officers law and subsequent approval of the establishment of a demonstration program in accordance with this section by a majority of the members of the entire board of the thruway authority, the chair of the thruway authority is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits in a highway construction or maintenance work area located on the thruway: (i) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (ii) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. Such demonstration program shall empower such chair to install photo speed violation monitoring systems within no more than twenty highway construction or maintenance work areas located on the thruway and to operate such systems within such work areas; (iii) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (iv) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. The chair of the thruway authority, in consultation with the superintendent of the division of state police, shall determine the location of the highway construction or maintenance work areas located on the thruway in which to install and operate photo speed violation monitoring systems. In selecting a highway construction or maintenance work area in which to install and operate a photo speed violation monitoring system, such chair shall consider criteria including, but not limited to, the speed data, crash history, and roadway geometry applicable to such highway construction or maintenance work area. A photo speed violation monitoring system shall not be installed or operated on a thruway exit ramp. The chair of the thruway authority and a local

tribunal may enter into a memorandum of understanding for the purposes of facilitating adjudication of liability imposed upon owners by this section. Such memorandum may address provisions for cost sharing and prosecutorial responsibilities.

2-b. Notwithstanding any other provision of law, after holding a public hearing in accordance with the public officers law and subsequent approval of the establishment of a demonstration program in accordance with this section by a majority of the members of the entire board of the bridge authority, the chair of the bridge authority is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits in a highway construction or maintenance work area located on bridge authority facilities: (i) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (ii) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. Such demonstration program shall empower such chair to install photo speed violation monitoring systems within no more than five highway construction or maintenance work areas located on bridge authority facilities and to operate such systems within such work areas; (iii) when highway construction or maintenance work is occurring and a work area speed limit is in effect as provided in paragraph two of subdivision (d) or subdivision (f) of section eleven hundred eighty of this article; or (iv) when highway construction or maintenance work is occurring and other speed limits are in effect as provided in subdivision (b) or (g) or paragraph one of subdivision (d) of section eleven hundred eighty of this article. The chair of the bridge authority, in consultation with the superintendent of the division of state police, shall determine the location of the highway construction or maintenance work areas located on bridge authority facilities in which to install and operate photo speed violation monitoring systems. In selecting a highway construction or maintenance work area in which to install and operate a photo speed violation monitoring system, such chair shall consider criteria including, but not limited to, the speed data, crash history, and roadway geometry applicable to such highway construction or maintenance work area. The New York state department of transportation may enter into a memorandum of understanding with the bridge authority for the purposes of coordinating the planning, design, and installation of photo speed violation monitoring systems in such photo speed violation monitoring demonstration program. Such memorandum shall address, for purposes of such demonstration program, the use of systems, devices and other facilities owned and operated by the state. The chair of the bridge authority and a local tribunal may enter into a memorandum of understanding for the purposes of facilitating adjudication of liability imposed upon owners by this section. Such memorandum may address provisions for cost sharing and prosecutorial responsibilities.

§ 11. Paragraphs 12 and 13 of subdivision (c) of section 1180-e of the vehicle and traffic law, as added by section 2 of part Q of chapter 58 of the laws of 2025, are amended and a new paragraph 14 is added to read as follows:

12. "Triborough bridge and tunnel authority" shall mean the corporation organized pursuant to section five hundred fifty-two of the public authorities law; ~~and~~

13. "Triborough bridge and tunnel authority facility" shall mean the following bridges and tunnels under the jurisdiction of the Triborough bridge and tunnel authority: the Bronx-Whitestone bridge; the Cross Bay Veterans Memorial bridge; the Henry Hudson bridge; the Marine Parkway-Gil Hodges Memorial bridge; the Robert F. Kennedy bridge; the Throgs Neck bridge; the Verrazzano-Narrows bridge; the Hugh L. Carey tunnel; and the Queens Midtown tunnel[-]; and

14. "Local tribunal" shall mean a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a county, city, town, or village has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such county, city, town, or village may, by local law, authorize such adjudication by such tribunal and except that adjudication of liability imposed upon owners by this section for violations occurring in the city of New York shall be by the New York city parking violations bureau.

§ 12. Subdivision (g) of section 1180-e of the vehicle and traffic law is amended by adding a new paragraph 5 to read as follows:

5. For the purposes of this section, the notice of liability containing the information set forth in paragraph two of this subdivision shall be deemed sufficient to initiate proceedings in accordance with the procedures set forth in this subdivision and subdivision (h) of this section.

§ 13. Subdivision (h) of section 1180-e of the vehicle and traffic law, as amended by section 2 of part Q of chapter 58 of the laws of 2025, is amended to read as follows:

(h) Adjudication of the liability imposed upon owners by this section shall be by a [~~traffic violations bureau established pursuant to section three hundred seventy of the general municipal law where the violation occurred or, if there be none, by the court having jurisdiction over traffic infractions where the violation occurred, except that if a city has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such city may, by local law, authorize such adjudication by such tribunal and except that adjudication of liability imposed upon owners by this section for violations occurring in the city of New York shall be by the New York city parking violations bureau.~~]

local tribunal pursuant to this section. For any local tribunal pursuant to this section having jurisdiction over traffic infractions where the violation occurred, a notice of liability validly imposed in accordance with subdivision (g) of this section shall be valid for purposes of such tribunal adjudicating such liability, and such tribunal shall adjudicate such liability in a manner not inconsistent with the procedures for a hearing officer pursuant to paragraphs (a), (b) and (c) of subdivision two of sections two hundred forty and two hundred forty-one of this chapter. Provided, however, subsequent judicial review may be sought pursuant to article seventy-eight of the civil practice law and rules. Notwithstanding any other provision of law, such local tribunal may adjudicate such liability remotely by online video conferencing or by mail through submission of a written explanation. Within fourteen business days after the local tribunal has rendered a decision, a notice of decision shall be prepared and sent by first class mail to the owner by the local tribunal or its designee. A manual or automatic record of

mailing prepared in the ordinary course of business shall be prima facie evidence of the facts contained therein. If the owner is deemed liable, they shall be notified that nonpayment of the penalty imposed in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

§ 14. The opening paragraph of subparagraph (i) of paragraph 2 of subdivision (j) of section 1180-e of the vehicle and traffic law, as amended by section 2 of part Q of chapter 58 of the laws of 2025, is amended to read as follows:

In the city of New York and in any county, city, town, or village which, by local law, has authorized the adjudication of liability imposed upon owners by this section by a parking violations bureau, an owner who is a lessor of a vehicle to which a notice of liability was issued pursuant to subdivision (g) of this section shall not be liable for the violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this article, provided that:

§ 15. Subdivision 10 of section 1803 of the vehicle and traffic law, as added by chapter 145 of the laws of 2019, is amended to read as follows:

10. Except where a county by local law has authorized an administrative tribunal to hear impositions of monetary liability on the owner of a vehicle for failure of an operator thereof to comply with section eleven hundred seventy-four of this chapter in accordance with section eleven hundred seventy-four-a of this chapter or as otherwise provided in paragraph e of subdivision one of this section, where a county has established a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with section eleven hundred seventy-four of this chapter in accordance with section eleven hundred seventy-four-a of this chapter, any fine or penalty collected by a court, judge, magistrate or other officer for an imposition of liability which occurs within such county pursuant to such program shall be paid to the state comptroller within the first ten days of the month following collection. Every such payment shall be accompanied by a statement in such form and detail as the comptroller shall provide. The comptroller shall pay ninety percent of any such fine or penalty imposed for such liability to the county in which the violation giving rise to the liability occurred, and ten percent of any such fine or penalty to the city, town or village in which the violation giving rise to the liability occurred.

§ 16. This act shall take effect immediately; provided, however, that the amendments to:

1. paragraphs 1 and 2 of subdivision (a) of section 1174-a of the vehicle and traffic law made by section four of this act shall not affect the repeal of such section and shall be deemed repealed therewith;

2. subparagraph (i) of paragraph 3 of subdivision (a) of section 1174-a of the vehicle and traffic law made by section five of this act shall not affect the repeal of such section and shall be deemed repealed therewith;

3. paragraph 4 of subdivision (a) of section 1174-a of the vehicle and traffic law made by section six of this act shall not affect the repeal of such section and shall be deemed repealed therewith;

4. subdivision (c) of section 1174-a of the vehicle and traffic law made by section seven of this act shall not affect the repeal of such section and shall be deemed repealed therewith;

1 5. paragraph 2 of subdivision (g) of section 1174-a of the vehicle and
2 traffic law made by section eight of this act shall not affect the
3 repeal of such section and shall be deemed repealed therewith;

4 6. subdivision (h) of section 1174-a of the vehicle and traffic law
5 made by section nine of this act shall not affect the repeal of such
6 section and shall be deemed repealed therewith;

7 7. paragraphs 1, 2 and 2-b of subdivision (a) of section 1180-e of the
8 vehicle and traffic law made by section ten of this act shall not affect
9 the repeal of such section and shall be deemed repealed therewith;

10 8. paragraphs 12, 13 and 14 of subdivision (c) of section 1180-e of
11 the vehicle and traffic law made by section eleven of this act shall not
12 affect the repeal of such section and shall be deemed repealed there-
13 with;

14 9. paragraph 5 of subdivision (g) of section 1180-e of the vehicle and
15 traffic law made by section twelve of this act shall not affect the
16 repeal of such section and shall be deemed repealed therewith;

17 10. subdivision (h) of section 1180-e of the vehicle and traffic law
18 made by section thirteen of this act shall not affect the repeal of such
19 section and shall be deemed repealed therewith;

20 11. subparagraph (i) of paragraph 2 of subdivision (j) of section
21 1180-e of the vehicle and traffic law made by section fourteen of this
22 act shall not affect the repeal of such section and shall be deemed
23 repealed therewith; and

24 12. subdivision 10 of section 1803 of the vehicle and traffic law made
25 by section fifteen of this act shall not affect the repeal of such
26 subdivision and shall be deemed repealed therewith.